

SENATE No. 2613

The Commonwealth of Massachusetts

PRESENTED BY:

Joan B. Lovely

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing the retirement board of the city of Salem to retire Kathleen Rocheville, a police officer of the city of Salem.

PETITION OF:

NAME:

Joan B. Lovely

DISTRICT/ADDRESS:

Second Essex

SENATE No. 2613

By Ms. Lovely, a petition (accompanied by bill, Senate, No. 2613) (subject to Joint Rule 12) of Joan B. Lovely for legislation to authorize the retirement board of the city of Salem to retire Kathleen Rocheville, a police officer of the city of Salem. Public Service.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the retirement board of the city of Salem to retire Kathleen Rocheville, a police officer of the city of Salem.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a) Notwithstanding any general or special law to the contrary, the
2 retirement board of the city of Salem shall retire Kathleen Rocheville, a police officer of the
3 police department of the city, who as a result of injuries sustained while in the performance of
4 her duties in November, 2015, is totally and permanently incapacitated from performing the
5 essential duties of a police officer; provided, however, that the provisions of subdivision (2) of
6 section 8 of chapter 32 of the General Laws shall apply as of the date of Kathleen Rocheville's
7 retirement pursuant to this act.

8 (b) The annual amount of authorizing the retirement board of the city of Salem to retire
9 Kathleen Rocheville, a police officer of the city of Salem to Kathleen Rocheville shall be equal
10 to the regular rate of compensation which would have been paid had she continued in service as
11 a police officer of the city of Salem at the grade held by her at the time of her retirement until her
12 death or reaching mandatory retirement age whichever comes first. The additional benefits

granted in this act shall be funded and administered by the retirement board of Salem, consistent with and subject to chapter 32 of the General Laws. All amounts paid under this act shall be non-taxable.

(c) Upon attaining the mandatory retirement age for a police officer in the city of Salem, Kathleen Rocheville shall receive a pension pursuant to section 7 of said chapter 32, a yearly amount of pension equal to 80 per cent of the annual rate of the compensation she was receiving on the day before she reaches the mandatory retirement age for a police officer in the city of Salem.

SECTION 2. Kathleen Rocheville shall be entitled to receive indemnification for all hospital, medical and related expenses that have been or may be incurred after the date of her retirement as a result of the injuries sustained by her while in the performance of her duties in October, 2014, in accordance with sections 100 and 100B of chapter 41 of the General Laws.

SECTION 3. In addition to the benefits granted herein and upon retirement, Kathleen Rocheville shall receive a lump sum from the retirement board of Salem equal to her total accumulated retirement deductions.

SECTION 4. If Kathleen Rocheville is married at the time of retirement, then upon her death, should her spouse survive her, the retirement board of Salem shall pay to the spouse an annuity in the amount of 75 per cent of the amount of the pension which otherwise would have been payable to her until her death. The pension benefits provided for in this section and subsection (c) of section 1 shall be subject to section 103 of chapter 32 of the General Laws.

SECTION 5. In the event that both Kathleen Rocheville, and her spouse, die before any children reach the age of 18 or 22, as provided in this act, the payments that would otherwise

35 have been made to the spouse shall be payable, in equal shares, to each surviving child under the
36 age of 18; provided, however, that payments shall continue for the benefit of a surviving child 18
37 years or older who, on or before the date of death of Kathleen Rocheville and her spouse,
38 whichever is later, had been medically determined to be permanently physically or mentally
39 incapacitated from earning or for the benefit of a child under the age of 22 who is enrolled as a
40 full-time student.

41 SECTION 6. The payments provided for in this act shall only be made when Kathleen
42 Rocheville has been examined by a medical panel, pursuant to section 6 of chapter 32, in which a
43 majority of the physicians have certified to the retirement board of Salem that the member is
44 mentally or physically incapacitated from further duty and that such incapacity is likely to be
45 permanent, and that the disability is such as might be the natural and proximate result of the
46 accident or hazard undergone on account of which retirement is claimed; provided, however, that
47 the public employee retirement administration commission may, upon request, waive such
48 examination if the member has already been approved by a medical panel and the board and is
49 receiving a disability benefit as of the effective date of this act. The commission shall promptly
50 notify the retirement board of the city of Salem of such waiver.

51 SECTION 7. This act shall take effect upon its passage.